

## CTR-061 Northgate Executed Agreement

Northgate - Northgate Cloud Platform Agreement 2 Enterprise Cloud Platform Enrollment and Product Terms Contract ref CTR-061. Vendor ref VEN-NORTHGATE. Term 2023-01-29 to 2027-01-28. Notice deadline 2026-09-30.

Document status: synthetic executed agreement for AbarVa Source testing. Commercial field Value Annual contract value \$35,800,000 Actual annual spend baseline \$28,289,093 Total committed value \$143,100,000 Decision owner role ref LDR-057 Scope summary Northgate Cloud committed consumption, Northgate Workplace E5, Northgate Insight Premium capacity, Northgate Copilot Business seats, and Unified Support for collaboration, analytics, airport operations, finance analytics, and platform engineering. Synthetic contract evidence - not client truth page 1

Recitals This Enterprise Cloud Platform Agreement ("Agreement") is entered into between SkyHarbor Air ("Customer") and Northgate Cloud Corporation ("Vendor"), collectively the "Parties." Customer operates a global airline and support-services group and requires committed cloud consumption, productivity, analytics, and developer-tooling capacity to support airport operations, finance analytics, crew operations, and technology delivery. Vendor is authorized to provide the cloud platform, productivity suite, analytics capacity, and developer-tooling services described in this Agreement. The Parties intend for this Agreement, together with its Exhibits and any executed order forms, to constitute the entire commercial and technical understanding governing the services described herein. Synthetic contract evidence - not client truth page 2

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**Definitions** Capitalized terms used in this Agreement have the meanings set out below or in the section where first used. "Affiliate" means an entity that controls, is controlled by, or is under common control with a Party. "Committed Consumption" means the annual cloud-spend commitment described in Exhibit A. "Customer Data" means data submitted to the platform by or on behalf of Customer, excluding Vendor's own operational and diagnostic telemetry. "Documentation" means Vendor's then-current published user and administrator guides for the services. "Order Form" means a Vendor-issued ordering document referencing this Agreement. "Service Credit" has the meaning given in the Service Levels and Credits section. "Subprocessor" means a third party engaged by Vendor to process Customer Data in delivering the services. Synthetic contract evidence - not client truth page 3

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Definitions, continued "Support Tier" means the unified support level purchased under Exhibit A. "Term" means the period from the Effective Date through the expiration or earlier termination of this Agreement. "Usage Data" means aggregated, de-identified data describing consumption of the services, used for billing, capacity planning, and service-credit calculation. "User" means an individual authorized by Customer to access the services under a named or metered license. Section headings in this Agreement are for convenience only and do not affect interpretation. Unless the context requires otherwise, references to a Section include its subsections and any referenced Exhibit. Synthetic contract evidence - not client truth page 4

1. Services and Business Scope 1. Statement of Scope The agreement covers Northgate Cloud committed consumption, Northgate Workplace E5, Northgate Insight Premium capacity, Northgate Copilot Business seats, and Unified Support for collaboration, analytics, and platform engineering. Extraction class: scope. Ledger: scope. Concept: contract.scope\_summary. The services support, among other functions, airport operations data workflows, finance analytics, crew collaboration, and the technology delivery organization's developer-productivity toolchain, as further detailed in Exhibit D. Synthetic contract evidence - not client truth page 5

2. Fees and Commercial Schedule 2. Annual Contract Value Annual contract value is USD 35,800,000, subject to the enrollment, product terms, and pricing schedule in Exhibit A. Extraction class: contract\_term. Ledger: decision. Concept: contract.annual\_value. 3. Total Committed Value Total committed value across the term is USD 143,100,000, excluding taxes and separately approved change orders. Extraction class: contract\_term. Ledger: decision. Concept: contract.total\_committed\_value. 4. Actual Annual Spend Baseline The spend baseline used for optimization is USD 28,289,093 of actual annual spend for the current measurement year. Extraction class: payment. Ledger: economics. Concept: contract.actual\_annual\_spend. 5. Material Pricing Lines The pricing schedule contains five material spend components: Northgate Cloud committed consumption, Northgate Workplace E5, Northgate Insight Premium capacity, Northgate Copilot Business, and Unified Support. Extraction class: rate\_card. Ledger: scope. Concept: contract.pricing\_line\_count. Synthetic contract evidence - not client truth page 6

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Payment Terms and Invoicing Vendor shall invoice Customer monthly in arrears for consumption-based components and annually in advance for committed subscription and support components, in each case consistent with the pricing schedule in Exhibit A. Invoices are payable in United States dollars within thirty days of the invoice date. Amounts not disputed in good faith within the audit window described in the Audit, Reporting, and Invoice Review section are deemed accepted. Late payments not subject to a good-faith dispute may accrue interest at the lesser of one and one-half percent per month or the maximum rate permitted by applicable law. Each Party is responsible for taxes based on its own income; applicable sales, use, and value-added taxes are Customer's responsibility unless Customer provides a valid exemption certificate. Synthetic contract evidence - not client truth page 7

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3. Usage, Overage, and Entitlement Management 6. Commitment and License Rebalance Customer may rebalance cloud commitment and reclaim unused licenses at renewal when monthly admin, FinOps, and usage exports demonstrate sustained under-consumption. Extraction class: usage. Ledger: avoided\_cost. Concept: usage.entitlement\_reclaim. Synthetic contract evidence - not client truth page 8



4. Service Levels and Credits 7. Service Credit Formula If availability, support response, or priority incident resolution falls below the applicable product target, Customer earns a service credit against affected monthly fees subject to claim requirements. Extraction class: service\_credit. Ledger: recoverable\_leakage. Concept: sla.credit\_formula. 8. Service Credit Claim Window Customer must submit service-credit claims within 45 days after the monthly SLA report or support incident record is available. Extraction class: service\_credit. Ledger: recoverable\_leakage. Concept: sla.credit\_claim\_window\_days. 9. Service Credit Cap Aggregate service credits are capped at 10 percent of affected monthly fees for the applicable service month. Extraction class: service\_credit. Ledger: recoverable\_leakage. Concept: sla.credit\_cap\_pct. Synthetic contract evidence - not client truth page 9

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**Data Protection and Confidentiality** Each Party shall protect the other's confidential information using at least the same degree of care it uses for its own confidential information of similar nature, and no less than a reasonable degree of care. Confidential information excludes information that is or becomes public through no fault of the receiving Party, was rightfully known before disclosure, or is independently developed without reference to the disclosing Party's confidential information. Vendor shall process Customer Data solely to provide the services and in accordance with the Security, Privacy, and AI Data Use section and Exhibit C, and shall notify Customer without undue delay upon becoming aware of a confirmed security incident affecting Customer Data. Synthetic contract evidence - not client truth page 10

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Intellectual Property As between the Parties, Customer retains all right, title, and interest in Customer Data, and Vendor retains all right, title, and interest in the platform, Documentation, and any underlying or derivative technology, excluding Customer Data. Vendor grants Customer a non-exclusive, non-transferable right to access and use the services during the Term solely for Customer's internal business operations, in accordance with this Agreement and the Documentation. No implied licenses are granted under this Agreement. Synthetic contract evidence - not client truth page 11

**Indemnification and Limitation of Liability** Vendor shall defend Customer against third-party claims alleging that the services, as provided and used in accordance with this Agreement, infringe that third party's intellectual property rights, and shall indemnify Customer for amounts finally awarded against Customer as a result, subject to prompt notice and Vendor's control of the defense. Except for breaches of confidentiality, indemnification obligations, and amounts owed under the payment terms, each Party's aggregate liability arising out of this Agreement is capped at the fees actually paid or payable by Customer under this Agreement in the twelve months preceding the event giving rise to the claim, using the actual annual spend baseline described in the Fees and Commercial Schedule section as the reference measurement year. Neither Party is liable for indirect, incidental, consequential, special, or punitive damages, or for lost profits or lost data, except to the extent arising from a Party's confidentiality breach. Synthetic contract evidence - not client truth page 12

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Insurance Vendor shall maintain, at its own expense, commercially reasonable insurance coverage appropriate to the services provided under this Agreement, including commercial general liability, professional liability (errors and omissions), and cyber/privacy liability coverage, in each case with reputable insurers. Vendor shall provide certificates of insurance to Customer upon reasonable request. Maintaining insurance does not limit or reduce Vendor's obligations or liability under this Agreement. Synthetic contract evidence - not client truth page 13

5. Renewal, Termination, and Exit 10. Renewal Notice Deadline The current term expires on 28 January 2027. Written non-renewal, commitment rebalance, or renegotiation notice must be delivered no later than 30 September 2026. Extraction class: renewal. Ledger: leverage. Concept: contract.notice\_deadline. 11. Auto-Renewal The agreement does not automatically renew unless the parties execute a renewal enrollment or extension document. Extraction class: renewal. Ledger: leverage. Concept: contract.auto\_renew. Upon expiration or termination, Vendor shall make Customer Data available for export in a standard format for a reasonable transition period, and each Party shall return or destroy the other's confidential information upon written request, except as required to be retained by law or standard backup processes. Synthetic contract evidence - not client truth page 14

6. Benchmarking and Price Protection 12. Benchmarking Right Customer may compare enterprise discount, support fee, and product-unit pricing against current market benchmarks and request commercial review during renewal. Extraction class: benchmark. Ledger: negotiated\_improvement. Concept: contract.benchmarking\_clause. 13. Price Protection Renewal price increases for like-for-like scope are capped at 5.5 percent annually unless usage, product mix, or regulatory requirements materially change. Extraction class: contract\_term. Ledger: negotiated\_improvement. Concept: contract.price\_uplift\_cap. Synthetic contract evidence - not client truth page 15

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7. Audit, Reporting, and Invoice Review 14. Invoice and Usage Audit Right Customer may audit invoices, Northgate Cloud consumption calculations, license assignment, support charges, and rate-card application once per contract year on thirty days written notice. Extraction class: invoice. Ledger: recoverable\_leakage. Concept: contract.audit\_right. Synthetic contract evidence - not client truth page 16



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**Assignment, Subcontracting, and Change of Control** Neither Party may assign this Agreement without the other Party's prior written consent, except that either Party may assign this Agreement without consent in connection with a merger, acquisition, or sale of substantially all of its assets, provided the assignee agrees in writing to be bound by this Agreement. Vendor may engage Subprocessors to perform services on its behalf, subject to the obligations described in the Security, Privacy, and AI Data Use section and Exhibit C, and remains responsible for each Subprocessor's performance. Synthetic contract evidence - not client truth page 17

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8. Security, Privacy, and AI Data Use 15. Security, Privacy, and AI Data Use Vendor must process Customer Data only for contracted cloud services, maintain SOC 2 Type II and ISO-aligned controls, provide subprocessors list updates, and may not train generalized AI models on Customer Data without written approval. Extraction class: security\_privacy. Ledger: evidence. Concept: contract.security\_privacy. Synthetic contract evidence - not client truth page 18

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9. Statements of Work and Change Orders 16. Change Order Control No support expansion, rate change, professional-services work, or additional cloud commitment is billable unless documented in an executed order, SOW, or change order referencing this agreement. Extraction class: change\_order. Ledger: recoverable\_leakage. Concept: contract.change\_order\_control. Synthetic contract evidence - not client truth page 19

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Force Majeure Neither Party is liable for delay or failure to perform its obligations (other than payment obligations) due to causes beyond its reasonable control, including natural disaster, act of government, labor dispute, or widespread telecommunications or utility failure, provided the affected Party gives prompt notice and uses commercially reasonable efforts to resume performance. Synthetic contract evidence - not client truth page 20

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**Dispute Resolution and Governing Law** This Agreement is governed by the laws of the State of Delaware, without regard to conflict-of-laws principles. The Parties shall attempt in good faith to resolve any dispute through escalation between designated commercial owners before initiating formal proceedings. Nothing in this section limits either Party's right to seek injunctive relief for actual or threatened breach of confidentiality or intellectual property rights. Synthetic contract evidence - not client truth page 21

**General Provisions and Signatures** This Agreement, including its Exhibits and any executed Order Forms, constitutes the entire agreement between the Parties regarding its subject matter and supersedes all prior discussions on that subject. Notices under this Agreement must be in writing and delivered to each Party's designated commercial contact. If any provision of this Agreement is held unenforceable, the remaining provisions remain in full effect, and the unenforceable provision is modified to the minimum extent necessary to make it enforceable. No waiver of any provision is effective unless in writing and signed by the waiving Party. This Agreement may be executed in counterparts. For Customer (SkyHarbor Air): Decision owner role ref LDR-057, title Cloud Platform Category Lead. For Vendor (Northgate Cloud Corporation): Authorized Signatory, Enterprise Agreements. No personal employee names, personal emails, or phone numbers appear in this Agreement; role references and system record identifiers are used throughout in accordance with Exhibit C. Synthetic contract evidence - not client truth page 22

Exhibit A - Pricing Schedule SKU or service Description Quantity or driver Annual value MS-AZ-COMMIT Northgate Cloud committed consumption Annual commitment \$17,200,000 MS-M365-E5 Northgate Workplace E5 38,200 user-months \$19,577,880 MS-PBI-PREM Northgate Insight Premium capacity 42 capacity-months \$2,444,400 MS-GH-COPILOT Northgate Copilot Business 3,700 seat-months \$843,600 MS-USUPPORT Unified Support Annual fee \$5,734,120 Synthetic contract evidence - not client truth page 23

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**Exhibit B - Evidence and Reporting Obligations** Vendor must support monthly reporting for invoices, service credits, usage, support incidents, rate-card application, and renewal quote history. Customer may use these reports for contract optimization, renewal governance, and finance-confirmed value tracking. Synthetic contract evidence - not client truth  
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Exhibit C - Privacy and AI Data Use No personal employee names, personal emails, phone numbers, or employee IDs are required for AbarVa extraction. Owner roles, role references, and system record identifiers are sufficient for sourcing analysis and auditability. Synthetic contract evidence - not client truth page 25

**Exhibit D - Application and Business Function Scope** The following applications and business functions are in scope under this Agreement, per the Customer's application portfolio of record: Airport Operations Data Hub (Airport operations, Tier 1); Finance Analytics Workspace (Finance and corporate, Tier 1); Crew Collaboration (Crew operations, Tier 1); Developer Productivity Toolchain (Technology delivery, Tier 2). This Exhibit is descriptive of current scope and does not itself create or modify any commercial commitment under this Agreement. Synthetic contract evidence - not client truth page 26